

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**JOINT MOTION FOR EXPEDITED RELIEF CONCERNING
EXPERT DISCOVERY AND IMPENDING CASE DEADLINES**

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel and pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion for Expedited Relief Concerning Expert Discovery and Impending Case Deadlines, incorporating by reference herein the Parties’ June 28, 2024 Joint Status Report and Motion to Extend Expert and Other Deadlines (the “Joint Motion for Extension”) and the updates provided in the Parties’ July 22, 2024 and August 2, 2024 Joint Status Reports. To the extent the Presiding Officer has questions for the Parties regarding this Joint Motion for Expedited Relief, the undersigned counsel for the Parties can make themselves available for a conference at the Presiding Officer’s earliest convenience via telephone or videoconferencing software.

As detailed in the Parties’ Joint Motion for Extension, despite the Parties’ diligent and collaborative efforts with respect to discovery in this action, the deadlines set by the May 22, 2024 Scheduling Order do not permit sufficient time for the Parties to complete fact depositions, final documentary and written discovery, or—of particular concern in this Joint Motion for Expedited

Relief—expert discovery. Although the Parties continue to schedule and take multiple fact depositions each week, there simply are not enough days left in the current schedule to complete them. Critically, because of the still-unfinished nature of fact discovery, including depositions of subpoenaed non-parties, the Parties simply are not yet in a position at present to complete, much less serve, their respective expert reports and conduct expert depositions. Although counsel for the Parties have mutually agreed to accommodate each other with respect to the timing of serving expert reports to the extent possible within the schedule set by the May 22, 2024 Scheduling Order, they are mutually concerned that their ability to do so is increasingly constrained by the current September 10, 2024 close of discovery.

Accordingly, the Parties jointly and respectfully request that the Presiding Officer issue, on an expedited basis, the attached Proposed Scheduling Order (which contains the same dates proposed in the Parties’ previously filed Joint Motion for Extension) or, at a minimum, issue an interim Order permitting the Parties to serve their respective expert reports and depose each other’s experts *after* they have completed the currently ongoing fact discovery.

In filing this Joint Motion for Expedited Relief, the Parties recognize that, as set forth in the July 18, 2024 Order Granting Motion to Extend Time to Reply, the Presiding Officer currently is considering a number of motions simultaneously, including the Parties’ pending Joint Motion for Extension, Complainant’s July 8, 2024 Motion for Permission to File Proposed Verified First Amended Complaint, and the associated motions to seal and challenging confidentiality designations also filed on July 8, 2024. Understanding that perspective and the goal of expedient resolution of those matters simultaneously, the Parties’ instant Motion seeks renewed attention to the scheduling relief requested because the Parties agree that, without an extension of the present expert discovery deadlines and Close of Discovery, they would each suffer severe prejudice,

including in particular with respect to their expert reports, which under the current schedule would need to be served long before fact discovery—including depositions of subpoenaed non-parties—has been completed. For that reason, interim relief, at least as to expert-related deadlines, the Close of Discovery and briefing deadline, would allow the Parties to continue expeditiously scheduling and taking depositions without the need to file expert reports based on an incomplete factual record while the Presiding Officer evaluates the other pending motions.

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Joint Motion for Expedited Relief with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Joint Motion for Expedited Relief.

WHEREFORE, the Parties jointly pray that this Joint Motion for Expedited Relief, and the Parties' previously filed Joint Motion for Extension, be granted.

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Respectfully submitted,

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